

25STCV03540 25STCV03540

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV03540 Hearing Date: October 26, 2026 Dept: 511

Tentative Ruling

Judge Upinder S. Kalra, Department 511

HEARING DATE: July 21, 2026

CASE NAME: Edmy X. Torres v. General Motors LLC

CASE NO.: 25STCV03540

MOTION FOR ATTORNEYS' FEES

MOVING PARTY: Plaintiff Edmy X. Torres

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An order awarding \$21,031.60 in attorneys' fees.

TENTATIVE RULING:

1. Motion for attorneys' fees is granted, as modified, for a total award of \$18,031.60.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 7, 2025, Plaintiff Edmy X. Torres (Plaintiff) filed a Song-Beverly complaint against Defendant General Motors LLC (Defendant) with causes of action for: (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of express written warranty; and (5) breach of implied warranty of

merchantability.

On March 17, 2025, Defendant filed an answer.

On February 25, 2026, Plaintiff filed a notice of settlement.

On March 17, 2026, Plaintiff filed a memorandum of costs.

On April 20, 2026, Plaintiff filed the instant motion for attorneys' fees. Oppositions were due on or before July 8, 2026. As of July 16, 2026, the court has not received an opposition.

LEGAL STANDARD:

A prevailing buyer in an action under Song-Beverly "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) By permitting buyers who prevail under Song-Beverly to recover their attorneys' fees, "our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible." (*Murillo v. Fleetwood Enterprises, Inc.* (1998) 17 Cal.4th 985, 994.)

The prevailing party has the burden of showing that the requested attorney fees are reasonable. (*Robertson v. Fleetwood Travel Trailers of California Inc.* (2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees "is not necessarily entitled to the compensation of the value of attorney services according to [his or her] own notion or to the full extent claimed. . . ." (*Levy v. Toyota Motor Sales, USA, Inc.* (1992) 4 Cal.App.4th 807, 816.) If the "time expended or the monetary charge being made for the time expended are not reasonable under all circumstances, then the court must take this into account and award fees in a lesser amount." (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.)

A calculation of attorneys' fees for a Song-Beverly action begins with the "lodestar" approach, under which the Court fixes the lodestar at "the number of hours reasonably expended multiplied by the reasonable hourly rate." (*Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004-1005.) "California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*Ibid.*)

"It is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 39.) It is also appropriate to reduce a fee award based on "inefficient or duplicative efforts" in the billing record. (*Id.* at p. 38.) However, the analysis must be "reasonably specific" and cannot rely on general notions about the fairness of the fee award. (*Kerkeles v. City of San Jose* (2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not permitted to tie any reductions in the fee award to some proportion of the buyer's damages recovery. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 39.)

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The lodestar figure may also be adjusted, based on consideration of factors specific to the case,¿in order to¿fix the fee at the¿fair market value¿for the legal services provided. (Serrano v. Priest¿(1977) 20 Cal.3d 25, 49;¿PLCM Group, Inc. v. Drexler¿(2000) 22 Cal.App.4th 1084, 1095.)¿The factors considered in¿determining¿the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill¿required¿and employed to handle the case, the attention given, the success or failure,¿and other circumstances in the case. (EnPalm, LLC v.¿Teitler¿Family Trust¿(2008) 162 Cal. App. 4th 770, 774 (emphasis in original).)¿A negative modifier was¿appropriate when¿duplicative work had been performed. (Thayer v. Wells Fargo Bank,¿N.A.¿(2001) 92 Cal.App.4th 819.)¿¿

ANALYSIS:

Prevailing Party¿¿¿

On November 6, 2025, the parties settled the matter in principle. (Declaration of Joseph Liu (Liu Decl.) ¶ 22.) The parties finalized and executed a long form settlement agreement on January 12, 2026. (Id.at ¶ 23.) The settlement agreement provides that Plaintiff is the prevailing party for purposes of this fee motion. (Ibid.) Therefore, Plaintiff is the prevailing party.

Lodestar Fees¿¿¿

The lodestar method looks at the time spent on a matter multiplied by the reasonable hourly rate. (Serrano, supra¿20 Cal.3d at 49).¿The two-step process begins with the lodestar method, which is the time spent on the matter multiple by the hourly rate. After the lodestar method, the second step is¿determining¿whether a multiplier should be applied. The factors that¿Courts¿look at to determine if a multiplier is reasonable are: 1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v. Moses¿(2001) 24 Cal.4th 1122, 1132).¿¿

Reasonableness of Hourly Rate

Plaintiffs contend their hourly rates of \$540 (partner), \$515-525 (senior associate), \$215 (paralegal) per hour are reasonable due to their years of experience in this area of law and as indicated in their incredible result.

“In¿determining¿hourly rates, the court must look to the “prevailing market rates in the relevant community.” (Bell v. Clackamas County¿(9th Cir.2003) 341 F.3d 858, 868.) The rates of comparable attorneys in the forum district are usually used. (See¿Gates v. Deukmejian¿(9th Cir.1992) 987 F.2d 1392, 1405.) In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy¿(2013) 215 Cal.App.4th 972, 1009.)¿¿

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The court finds that these hourly rates are reasonable based on the hourly rate of similarly situated attorneys in the Los Angeles area. Notably, Plaintiffs provide evidence of the attorneys' and paralegals' experience and previous rates. (Liu Decl. ¶¶ 26-31.) Based on the Laffey Matrix, attorneys with similar years of experience as Plaintiff's counsel as identified above have comparable, if not a higher hourly rate.

Thus, the hourly rates are appropriate.

Reasonableness of Hours Spent

Plaintiff seeks to recover for 39.5 hours of work. (Liu Decl. ¶ 40, Exhibit 9.)

To determine if the requested amount is reasonable, California courts utilize the lodestar method. The two-step process begins with the lodestar method, which is the time spent on the matter multiple by the hourly rate. After the lodestar method, the second step is determining whether a multiplier should be applied. The factors that Courts look at to determine if a multiplier is reasonable are: (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Although a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred," (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682), ultimately, Counsel still has the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247.)

Here, there is no opposition to the fees sought. However, that means the proposed time to review and respond to an opposition (\$3,000) is not warranted. Plaintiffs have provided a fee bill. Here, the Court has reviewed the detailed fee bill with an eye for excessive, duplicative or unreasonable charges as contended by Defendant. After a careful review, the Court finds that the hours were reasonable.

Accordingly, the court GRANTS Plaintiff's motion for attorney's fees, as modified, for an award of \$18,031.60.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for attorneys' fees is granted, as modified, for a total award of \$18,031.60.

Moving party is to give notice.

IT IS SO ORDERED.

Upinder S. Kalra

Judge of the Superior Court